

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 05/22/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties

EMAIL THE DEPARTMENT at dept32@contracosta.courts.ca.gov to request argument and

SPECIFY THE ISSUES to be argued.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

CourtCall will **NOT** be used by D32.

Zoom is approved for all hearings except Issue Conferences and Trials.

Dept. 32's telephone number is: (925) 608-1132.

Dept. 32's email address is: dept32@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1>

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02021

CASE NAME: XIAO ZHENG VS. MICHAEL CISTERNINO

***HEARING ON MOTION IN RE: ATTORNEY'S FEES ON APPEAL OF DISCOVERY SANCTIONS ORDER
FILED BY: CISTERNINO, MICHAEL**

TENTATIVE RULING:

In order to assess further the arguments of the parties, the court requests clarity as to the exact math behind the claims of the moving party for an award between \$35,861 and \$59,220. The moving party is directed to file and serve a proposed order by noon on May 29, 2026 that lists a breakdown of the

requested fees and costs, including hourly rates and number of hours, for which motion or proceeding incurred, when incurred and when awarded or affirmed, **as line items in a table, with footnotes identifying the Declaration and Exhibit number that contains the support for each line item.** Moving party shall list the request for a lodestar multiplier as an additional line item for the court to consider.

The court on its own motion continues the hearing to **June 12, 2026 at 9:00 a.m.**

2. 9:00 AM CASE NUMBER: C24-01447
CASE NAME: PAMELA MILLER VS. COSTCO WHOLESALE CORPORATION
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: COSTCO WHOLESALE CORPORATION
TENTATIVE RULING:

Vacated on May 15, 2026 by the court.

3. 9:00 AM CASE NUMBER: C25-00377
CASE NAME: ANGELICA REYNOLDS VS. PEDRO ZARAGOZA
***HEARING ON MOTION IN RE: LEAVE TO FILE 2ND AMENDED COMPLAINT**
FILED BY:
TENTATIVE RULING:

The unopposed motion of Plaintiff for Leave to File a Second Amended Complaint is granted.

1. Plaintiff is directed **to file the Second Amended Complaint** within 15 days of May 22, 2026.
2. Defendants shall have 30 days from the date of service of the Second Amended Complaint to file responsive pleadings

4. 9:00 AM CASE NUMBER: C25-01045
CASE NAME: JOSE LOPEZ-VALDEZ VS. LYFT, INC.,
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: LYFT, INC.,
TENTATIVE RULING:

Before the Court is a motion by defendant, Lyft, Inc. to compel the arbitration of plaintiff's claims against it. Both plaintiff and the other defendants oppose the motion. A court must order arbitration if it determines that a valid agreement to arbitrate exists. Here, an agreement exists, no valid defense to enforcement has been shown, and the claims at issue are within the scope of the agreement.

The motion is **granted**. Lyft and plaintiff, Jose Ramon Lopez-Valdez, are ordered to submit the matter to arbitration. This proceeding is hereby stayed. **The Court sets a case management conference on December 3, 2026, at 8:30 a.m.** for a status update on arbitration.

I. Background